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MOTHERING, CRIME, AND INCARCERATION

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This article examines the relationships between mothering, crime, and incarceration through the narratives of thirty women incarcerated in a southwestern county jail. The responsibilities of child care, combined with the burdens of economic marginality and domestic violence, led some women to choose economic crimes or drug dealing as an alternative to hunger and homelessness. Other women, arrested for drug- or alcohol-related crimes, related their offenses to the psychological pain and despair resulting from loss of custody of their children. Many women were incarcerated for minor probation violations that often related to the conflict between work, child care, and probation requirements. For all women with children, mothering represented both the burdens of an unequal sexual division of labor and opportunities for resistance to marginalization and hopelessness.

Keywords: *women, crime, incarceration, mothering*

The dramatic increase in the incarceration of women between 1980 and 2002 has stimulated renewed discussion of child care and mothering responsibilities of women in prisons and jails. Although prisons in the United States and Great Britain originally permitted children to accompany mothers, this practice changed during the Progressive Era with the belief that the prison was a corrupting influence on children (Dobash, Dobash, and Gutteridge 1986). Today, in the United States, there are very few correctional facilities that provide the opportunity for children to reside with incarcerated mothers. A survey conducted by the National Institute of Corrections found that eleven state department of corrections provided at least one facility for newborns, infants, and babies up to eighteen months of age to accompany their mothers; the vast majority provide none (National Institute of Corrections 2002). Internationally, the manner in which mothers and young children are treated within the correctional system varies from no accommodation (New Zealand) to accommodation up to six years of age (Spain) (Caddle 1998). Russia recently took the most dramatic action to address the problem of mothering by incarcerated women by passing legislation that pardons and releases all female inmates with children in prison nurseries, approximately five hundred women, regardless of their crimes (Karush 2002).

In the United States, most of the discussion concerning incarcerated mothers has focused on the immediate and long-term negative consequences for children. Two books, titled *Why Punish the Children?*

(Bloom and Steinhart 1993; McGowan and Blumenthal 1978), as well as numerous articles, focus on the problems created for children by the incarceration of their mothers. Government policies that have focused on the punishment of marginalized women have produced enormous burdens for single mothers. These burdens, including tripling rates of incarceration and the elimination or curtailment of social welfare provisions, are overlooked in social policies that focus on “innocent children” rather than their mothers. As part of President Bush’s “Armies of Compassion” agenda, the Promoting Safe and Stable Families Amendments of 2001 authorized \$67 million for two years for government, nonprofit, and faith-based organizations to develop mentoring programs for the growing number of children of imprisoned parents, although Congress did not appropriate funds for 2002 (Administration for Children and Families 2002). This initiative does not address the mandatory sentencing policies that have produced the huge increases in the incarceration of women but rather the ways to meet the needs of children whose mothers are caught in the politics of the “war on drugs.”

In contrast to this emphasis on the needs of children, this article focuses on women’s experiences with mothering, crime, and incarceration. Each of these socially constructed categories reflects and reinforces gendered expectations for women’s performance, as well as race and class hierarchies. Some research has suggested that the legal system tends to de-emphasize, excuse, justify, and downplay women’s crimes, even those that are targeted at or incidentally harm their children (Allen 1987; Daly 1994). According to such reports, women are portrayed within the legal system in ways that are consistent with paternalistic hegemonic standards of passivity and weakness and, as such, are unable to be held fully accountable for their criminal activities. Such research, supportive of the chivalry thesis in criminology (see Pollak 1950), contrasts with other studies that find that women are processed through the criminal justice system in misogynist ways, demonized and vilified for countering hegemonic womanhood and motherhood vis-à-vis their criminal offenses (Chesney-Lind 1997; Gilbert 1999; Nagel and Hagan 1983; Young 1986). The women most likely to benefit from hegemonic notions of womanhood and motherhood within the criminal justice system are those that fit the ideal image within society at large, namely white, middle to upper class, heterosexual women (Belknap 2001). Much current research suggests that the disproportionate rate of incarceration of women of color is a reflection of racist perceptions,

policing, and sentencing policies (Belknap 2001; Gilbert 1999; Richie 2001).

While women are capable of and certainly do commit many forms of crime, including interpersonal violent crimes that in some cases harm their children, they also commit their crimes from gendered, as well as raced and classed, positions that are politically, economically, and historically rooted (Allen 1987; Humphries 1999). Despite instances in which the contexts of women's crimes resemble those of men's (see as examples Miller 1998; Sommers, Baskin, and Fagan 2000), overall, women are more likely to commit minor property offenses than serious or violent offenses as compared to men and are less likely to recidivate than men (Smart 1995). The crimes for which they are most often arrested and incarcerated are suggestive of their gendered and raced social positioning (Richie 2001; Ross 1998). Such crimes include non-violent and minor property crimes such as prostitution, larceny, shoplifting, check or credit card fraud, forgery/counterfeiting, and drug possession (Immarigeon and Chesney-Lind 1992; Bloom, Chesney-Lind, and Owen 1994; Chesney-Lind 1997; Chesney-Lind, Harris, and deGroot 1998; Greenfield and Snell 1999; Watterson 1996). The growth in the number of incarcerated women between 1990 and 2000 is composed largely of drug offenders (Harrison and Beck 2002).

Despite the relative infrequency and nonviolent nature of female offending, the numbers of women under control of the "correctional" system in the United States have been growing over the past twenty years at a faster pace than the numbers of men (Chesney-Lind 1997; Greenfield and Snell 1999; U.S. General Accounting Office 1999). Between 1990 and 2000, the rate of female incarceration increased by 108 percent (Beck and Harrison 2001). Yet the proportion of women composing the total correctional population remains small. Only about 6.7 percent of the total prison population and about 11 percent of the local jail population are women (Greenfield and Snell 1999; Stephan 2001). The research, facilities, and programs for criminal offenders in the United States focus primarily on adult male offenders. Knowledge of incarcerated women's experiences and responsiveness of prisons and jails to women's circumstances have both been retarded by neglect of the gendered dimensions of incarceration.

The vast majority of prisons and jails have not developed the most rudimentary resources for women inmates (Morash 1998; U.S. General Accounting Office 1999). Women are assessed and classified using

instruments designed for males, and programming is designed without consideration of the differing needs of women. Although at least 70 percent of women in jail have minor children, few jails have programs that foster parenting skills or contact between mothers and children, and there are virtually no programs designed to assist children with problems related to the incarceration of their mothers (Greenfield and Snell 1999).

There have been several studies of mothering from inside prisons and jails over the past twenty-five years, including Bloom (1992), Bloom and Steinhart (1993), Watterson (1996), Henriques (1982), Snell (1994), Enos (2001), Baunach (1985), Stanton (1980), Zalba (1964), and Glick and Neto (1977). The existing literature indicates that mothering is a central concern of incarcerated women and that correctional facilities have failed to respond adequately to this concern. Studies on incarceration and mothering report that many women commit minor property crimes to provide for their children, although there is no systematic data on the prevalence of this influence on women's crimes (Henriques 1982; Watterson 1996). Previous research has documented that women's concerns about their children's well-being, as well as their distress at separation, are the most salient features of incarceration for women with children (Boudin 1998; Enos 2001; Henriques 1982; Watterson 1996). Comparison of incarcerated mothers and fathers indicates that women are more likely to have custody of children prior to incarceration and that men are much more likely to have female partners to care for children during their incarceration (Mumola 2000; Schafer and Dellinger 1999). Women most commonly use female relatives rather than male partners to care for children in their absence. This suggests that women's incarceration creates unique concerns about the welfare of their children from which most men are protected by the presence of a female partner who attends to their children.

SOCIAL CONSTRUCTIONS OF GOOD MOTHERS

Mothering is simultaneously a positive source of pleasure and identity formation and a vector for the social control of women. For women with children, mothering is a central component of identity, daily activity, and life plans. At the same time, the burdens and social expectations

of mothering reinforce oppressive notions of femininity including self-sacrifice and subordination of personal goals to the needs of "the family." Naturalized assumptions regarding masculinity and femininity and raced and classed standards of gender performance saturate and reinforce constructions of mothering (Smart 1998). The ability to mother one's children according to social expectations and personal desires depends ultimately on one's access to the resources of time, money, health, and social support. A significant proportion of mothers negotiates their child rearing through obstacles that undermine their efforts to be "good mothers," both on their own terms and in the eyes of the state.

Kline (1995) described the dominant ideology of motherhood as "the constellation of ideas and images in Western capitalist societies that constitute the dominant ideals of motherhood against which women's lives are judged" (p. 119). The ideology is composed of historically constituted conceptions of maternal fitness that reflect race and class biases, as well as heterosexist and patriarchal notions of the family (Fineman 1995; Hill Collins 2000; Kline 1995). Women who are deemed "bad" or "unfit" mothers are often those who deviate from this ideology. Ikemoto (1997) outlined the stereotypes that are applied to women classified as "bad" or "unfit" mothers:

She has little education. . . . She is unsophisticated, easily influenced by simple religious dogma. She is pregnant because of promiscuity and irresponsibility. She is hostile to authority even though the state has good intentions. She is unreliable. She is ignorant and foreign. She does not know what is best. . . . These assumed characteristics are particular to stereotypes of poor women of color. So . . . she is Black; she is Hispanic; she is Asian; and she is poor. (p. 140)

The dominant ideology of motherhood reflects essentialist conceptions of women as inherently caring and self-sacrificing and simultaneously enforces distinctions among women based on race and class prejudices. While the dominant ideology of motherhood may distort the experiences and aspirations of all women, white, heterosexual, married, middle-class women continue to represent the most desired mothers in popular culture and social policy in the United States (Roberts 1995). Women who are identified as inadequate mothers are especially susceptible to social and legal regulation of their maternal rights (Kline 1995). Thus, motherhood resembles more of a privilege for some women rather than a right for all women (Molloy 1992). As such, it may

be withheld from women who are not members of dominant social groups and women deemed unfit by social and legal standards (Kline 1995).

Despite rhetoric of a robust economy and envious standard of living, approximately 40 percent of all single mothers in the United States in 2000 lived at or below poverty level (Caiazza 2000). Women at the lower end of the economic spectrum work tedious, unstable jobs; negotiate the rough terrain of “dating” or maintaining intimate relationships; transport children to less than optimal “child care” arrangements; cook; clean; shop; wash; attend whatever classes may lead to better jobs or are required by caseworkers or probation officers; and provide the hugs, stories, conflict resolution, and moral guidance that help their children grow. Their identities and choices may revolve around their children, but the conditions in which they labor to nurture, protect, and educate their children are determined by others in increasingly miserly ways.

METHOD AND SAMPLE CHARACTERISTICS

Our study was formulated to examine the relationships between women’s experiences of violent victimization and incarceration. We developed a semistructured interview schedule designed to elicit topical life-history narratives. Such an approach has become a preferred means of data collection among those working with incarcerated and otherwise marginalized populations whose experiences are not easily predetermined or quantifiable (see as examples Arnold 1990; Gilfus 1992; Richie 1996). This methodology allowed us to center our analysis on the specific vantage points of the jailed women and to honor their location for developing understanding of mothering and incarceration (Hill Collins 1989, 2000; Elliott 1994; Hartsock 1987; Narayan 1988; Smith 1987). Assuming that members of marginalized groups can offer meaningful accounts of the ways in which the world is organized according to the oppressions they experience, we felt it appropriate to center our data collection and analysis on the direct accounts provided by the women about their life experiences (Sandoval 2000). In analyzing these accounts, we do not assume that they represent the objective truth of women’s mothering any more than probation and court records represent such truth. Incarcerated women may have a unique stake in

constructing accounts of mothering that emphasize their conformity to social expectations to counterbalance the stigma attached to criminalization (see Orbuch 1997). While strategies of self-presentation are always a concern in conducting interviews, we did not find that women portrayed their mothering in a particularly positive light. Rather, women were very emotional, often crying and on one occasion ending the interview, and expressed remorse and guilt over the impact of their crimes on their children.

We conducted our interviews in a semistructured format and encouraged women to deviate from our more structured discussion when they felt it appropriate to do so. We prompted women to elaborate on topics that were not necessarily central to our original research goals but appeared to hold particular significance for them. Because our expectation was that women's accounts of such experiences would be heavily contextualized and detailed, we accorded ourselves and our interviewees much flexibility in the format and order in which topics were discussed. Women provided deeply rich, detailed, descriptive, and diverse narratives that would not have been available through alternative means of data collection (DeVault 1999; Kvale 1996; Lofland and Lofland 1995).

Using a grounded theory approach to data analysis (Glaser and Strauss 1967), both authors combed each transcribed interview for themes relating to mothering. The topics that emerged included the relationship between crimes and the economic needs of mothering, jail as a retreat from violence and child care demands, addictions and child protective services (CPS), and the place of mothering in women's identities. Mothering was related to women's offending and incarceration as well as to methods of maintaining an identity and making plans for the future. The experiences women described illustrate the ways in which race, class, gender, and personal biographies intersect with hegemonic ideologies of mothering. Women's identities and actions both reflect and resist the dominant expectations of women as mothers in the United States.

Our success in obtaining such rich narratives was due in no small part to the access and accommodations accorded us by the administrators and staff at the Pima County Adult Detention Facility (PCAD) in southern Arizona. Access was granted to the inmates at the facility during the spring of 2000. Approximately two hundred women were incarcerated in the detention center at this time, with roughly sixty-five volunteering

to be interviewed. These volunteers were recruited by correctional staff who explained the research, provided confidentiality statements, and passed around sign-up sheets prior to our visits to the facility. We had no criteria for the participants and, to our knowledge, neither did the correctional facility. Our only constraint on the number of women who could participate was funding as we were only able to pay thirty interviewees a ten- to twenty-dollar stipend. The ability to earn such money by participating in a research study proved to be a strong incentive for women who said they would use the funds to purchase such basic supplies as shampoo, conditioner, tampons, stamps, paper and pencils, soda, and candy bars. Some planned to use their money to purchase a bus token and food upon their release. A few stated that they were going to share their funds with other women who had no outside sources of funding.

We each conducted interviews, one on one, with women in private rooms without the presence of a correctional officer. Before beginning each interview, we explained the purposes of the research to the women, asked them to sign an informed consent form, and told them they could end the interview at any time. The interviews ranged in length from forty minutes to four hours. All of the women agreed to have their interviews audiotaped, which we later transcribed verbatim. In only a few cases was the recording halted at the request of an interviewee so that she could say something "off the record." Most women seemed quite willing, even anxious, to share their experiences with us. Most also decided to provide their own pseudonyms with which to be identified in the transcriptions and resulting reports.

Our flexibility in format and structure allowed us to interview a diverse set of women. The PCAD housed both sentenced and unsentenced women awaiting hearings. We interviewed both, with twenty-five having already been sentenced and five awaiting a trial or sentencing hearing. Only two women planned to go trial, both facing murder charges. One of these women had accompanied a man she met late at night at a bus stop to what she thought was a party but later learned was a robbery. Since a police officer shot and killed the primary offender, she was charged under the felony murder statutes. The other woman was charged with conspiracy to commit the murder of a police officer. Her account was extremely confusing, and it is difficult to know what her situation really was. Her husband was involved with some methamphetamine dealers, and she was charged with being part of this

group that was conspiring to kill a police officer. The rest of the women were charged with drug, prostitution, or property offenses and had either violated probation or accepted a plea bargain and were awaiting sentencing. The women ranged in age from twenty-one years to fifty years, with an average of thirty-four years. Fifteen (50 percent) women identified as white, seven (23 percent) as Black, three (10 percent) as Latina, three (10 percent) as American Indian, and two (6 percent) as biracial. This distribution was comparable to the proportions of women in each racial/ethnic group in the jail at the time of our interviews in which 53 percent were white, 24 percent Latina, 13 percent Black, and 9 percent American Indian. Few of the women had stable or sustainable employment prior to their incarceration and generally identified themselves as lower to working middle class. Twenty-seven (90 percent) of the women had children, with an average of three children each. Two of these women were also pregnant at the time of their interviews.

IMPACT OF THE ROLE OF MOTHERING ON CRIMINAL OFFENDING

Arizona, like most states in the United States, provides a very low level of financial and social support for mothering. Overall, 16.5 percent of Arizona women live in poverty, with the proportion rising to 22.3 percent in rural counties bordering Mexico and 53.3 percent on American Indian reservations (Caiazza 2000). Throughout the state, approximately one-third of Latina and African American women and one-half of American Indian women live in poverty. Poverty data by race and family composition are not available, but overall, 41.5 percent of single women with children live in poverty, which is comparable to the national rate of 41 percent (Caiazza 2000). Nearly 25 percent of Arizona women do not have health insurance (compared with a national rate of 18.5 percent), and the average annual cash benefit provided to single mothers through Temporary Assistance for Needy Families in Arizona, \$3,345, is considerably lower than the U.S. average of \$4,297. Child support is awarded in about 30 percent of mother-headed households, but only 43.6 percent of orders for collection result in actual collections. Single mothers, especially those with less than a high school education and women of color, face harsh economic constraints and a lack of low-cost housing, child care, and medical services.

Some of the mothers interviewed correlated this economic situation directly with their participation in criminal activity. Women with children in their custody conceptualized crime as an alternative to hunger and homelessness. Women without dependent children did not discuss the relationship between economic survival and economic crimes and most often referenced drugs and alcohol as the basis for their offenses. Several women linked their financial difficulties, and the crimes they committed to obtain money, to efforts to escape from or cope with violent men while providing for their children. These women articulated the structural barriers to successful mothering and viewed nonviolent crime as a rational, responsible action taken to meet their children's needs. This interpretation of the reasonableness of crimes contrasted with individualistic and self-blaming views expressed by most women incarcerated for drug and prostitution crimes committed to support addictions. In this way, the role of mothering served as catalyst and a rationale for crime that was not available to women without children in their custody.

Racial differences were apparent in the accounts of women, as African American women were more fully cognizant of the ways in which race, gender, and poverty were intertwined through institutionalized patterns of exclusion. All the African American women in our sample had been battered, and they were the most realistic about economic exclusions and their sole responsibility for meeting the economic needs of their children. American Indian women also discussed their experiences with racism but linked them more to addictions than to poverty. Latina women most often described their offending in terms of individual deficiencies and/or victimizations rather than structural economic constraints.

Alicia, a twenty-one-year-old biracial (African American/white) woman with two children, ages three and five, reported that she had been on her own since she was seventeen, having left the abusive father of her children. She completed a training program as a nursing assistant and had been working as well as selling crack. She was in jail for possession of crack, powder cocaine, and paraphernalia. The "paraphernalia" was the cigarette case she used to transport the drugs for sale. Although she thought that selling was wrong "because crack destroys people's lives," she felt her actions were "right at the time" because they allowed her to support her children:

I don't regret it because without the extra income, my kids wouldn't be fed every day. Even though I do have a good job when I work and stuff like that, it's hard raising two kids by yourself. . . . You get used to having money every day and you don't have to worry about the electric being off or the rent being paid. Your check is like your hard earned money; you're not going to spend it ridiculously like, "Oh, let's go buy a hundred-dollar pair of shoes with it." You know what I'm saying? You budget it because it's the only thing you look forward to for paying your bills. . . . But with that other money [paycheck] it goes so fast. As soon as you get it, the kids need new clothes or spend twenty dollars at the Circle K for candy. . . . We may not have chosen the right paths to go along in life, but I'm not a dummy. . . . They get mad at you if you can't get a job in two weeks. Who in the hell is going to employ you? I'm not going to McDonald's. McDonald's is not going to pay my rent. That's what they want you to do, lower your self-esteem to where you will take anything. I'm sorry, I have never worked for a five dollar an hour job, not since I was a teenager. I'm not going to now. I have two kids to support. Where am I going to live with them? In a shelter, making five dollars an hour. I'm not going to subject my kids to something like that. I'd rather just do my prison time if I have to do it and get rid of all of this.

Although she was one of the youngest women in the sample, Alicia rejected total, individual responsibility for her crime. Her explanation for selling crack reflects some of the aspects of individual worth in the African American community described by Gilbert (1999, 239): self-help, competence, confidence, and consciousness. She understood that the options available to her as a single mother were limited and that she was "a grain of sand" in the underground economy that would grind on with or without her participation. Her "good job" as a nursing assistant was sporadic and unreliable and paid about ten dollars an hour. She made a decision to sell crack to support her family and preferred going to jail to working at a minimum wage, dead-end job and living in a shelter with her children. She had a boyfriend who was also in jail, but she had no expectation that he would support her or her children.

Angel also committed crimes to support her seven children. A forty-one-year-old African American woman who grew up in an extremely abusive and violent environment, Angel disclosed that her father was a pimp and that she grew up in a house full of people who "used drugs twenty-four/seven." She moved out and lived on her own at age seventeen and put herself through two and a half years of college. She had been working at a well-paying sales job when her violent husband

tracked her down and began to harass her. She quit her job and moved her family to Phoenix but was unable to find a job that would pay her bills. She began writing bad checks as a way of making ends meet. When asked if she was receiving any benefits while she was writing checks, she responded,

Sometimes yes, as the check writing went off and on for a period, for a number of years, so yes. Sometimes I was getting benefits; sometimes I wasn't. I would have to supplement my income writing the checks, buying the groceries, stealing money from the bank to pay for rent or to pay for a car repair. You know, it was always something. [Question: How much is your restitution?] Six thousand dollars, which isn't that bad, because most of it I was buying was just stuff for the kids: groceries, and clothing for the children, toys for the kids, just basic stuff, and my rent. There were a couple of times I went to the bank and wrote checks for cash and made it out for one thousand dollars cash that was for covering things, bills, stuff like that. There's a lot of girls in here that have restitution much greater than mine.

Restitution was one of the burdens women faced as they left jail, which added to their already precarious economic situations. The other significant burden was the terms of probation. Eight women (27 percent) had been incarcerated because of minor probation violations, such as failing to inform a probation officer of one's whereabouts or missing an appointment because of work, sickness, or lack of transportation. Complying with probation requirements, or drug court requirements, places tremendous demands on the resources of single mothers, which are already strained. Alicia explained the difficulties of parenting and following the guidelines of intensive probation services (IPS):

This is my probation's terms. Three to four times a week, counseling, but you have to pay for it. One girl said she was paying like sixty dollars a week just for three counseling sessions. Every time it was twenty bucks, bang. . . . They expect us to have a full-time job, which is fine, counseling four times a week, on top of community service two hours a day; so that's ten hours a week, so where is the time for your kids? And they know some people have kids, but they don't care. You mess up any step of the law and they're violating you and putting you in prison. That's a lot of things to look forward to. That's a lot of stuff. And if you don't go to counseling when they say to go, you're violated even if you drop clean every day. If you mess up in any of those areas. Say the traffic is bad, or

say my daughter is asthmatic. She goes into an asthma attack in the middle of the night, I have to make sure I page my IPS worker and make sure he calls me back in time before I go to the doctor. My daughter could be suffocating in this time while he's taking his time calling me back and they don't care. You leave without them knowing, you're violated. They don't care if you're dying or your kids are dying. Good thing my daughter hasn't been in the hospital. She has a heart murmur. Anything can happen to her, and I don't feel like that's right for them to violate if I am at the hospital with my child. Even if I get there right away and I page them, they say, "Well, too bad. You're prison bound." That's what IPS stands for: in prison soon. A lot of people say that.

One other African American woman's original crime, welfare fraud, was obviously related to providing for her three children. She was not incarcerated for welfare fraud, however, but for violating the probation she received for that original offense by smoking marijuana. Her "dirty" urine analysis prompted the judge to revoke her probation and give her a felony conviction plus 120 days in jail. She felt this was unfair, created additional problems for her children, and limited her opportunities for employment. Patrice explained that at the time she "signed the welfare check," her baby's father was in prison, and she had no source of funds:

I wanted my baby a baby bed and wanted her this and I wanted her that, and he wasn't there. I didn't know where he was. Just one day he disappeared and I didn't know where he was. When I went for my sentencing, I thought he was going to let me go because I paid for all of my restitution for the welfare check and everything. My lawyer's like, "We think she should be released." And the judge goes, "No, I'm going to give her about 121 days." I said, "Why?" He goes, "'Cause you shouldn't have smoked that joint."

Patrice had recently obtained work release status and was trying to find a job. She wanted to get her three children back from her sister and move into a house but was worried about finances. Her story reflects the spiraling effects of getting caught up in the criminal justice system while trying to make ends meet:

Is there anything preventing me from getting a job? Yes, the felony that he gave me because of a little joint. I don't think he was very fair at all. I think that a felony is for somebody who did something really actually

bad or something like that. I ain't sayin' what I did wasn't a crime. I know it was a crime. I just can't imagine why he would give me a felony because I broke probation and smoked a joint. I write down "felony" on my applications and everybody goes, "Oh no, we can't hire you." . . . A lot of us are in here for probation violations. The judge didn't care that we had kids or care that we lost our house or anything.

Lonna, a thirty-one-year-old biracial (Latina/white) woman with three children, was also in jail for violating probation after arrest for welfare fraud. She blamed her abusive husband for taking her money and creating an economic situation in which she felt compelled to commit welfare fraud:

I don't want to make it sound like it was all his fault, but it is. I've been married since 1986. There came a time, about 1995, when there was sometimes no water in the house, no electric, no food. So while I was working I collected welfare. Not only that, sometimes he would take my money anyway no matter if he was working or not. It didn't matter. Sometimes he'd just take my money anyway, so I would go and get extra checks.

Lonna was sentenced to probation and was able to maintain a good job. After she was switched to a new probation officer, however, she had trouble maintaining contact, was arrested, and was jailed for four months.

While these women's initial crimes were motivated by a desire to provide for their children, it was minor violations of probation terms that caused the greatest problems for them. Women attempted to manage the demands of motherhood, interlaced with traditional prescriptions for femininity, while providing income and dealing with prior and ongoing victimization. Scripted notions of successful mothering and of femininity made compliance with elaborate probation terms difficult as the women's lives were filled with expectations of caring for others while under the gaze of the state.

JAIL AS A RETREAT

For many women, life was so arduous and precarious that incarceration was actually perceived as an improvement. This was particularly

true for women who had lived in extreme battering situations, who felt protected from their abusers while in jail (although some women continued to be terrorized through prison and jail networks and threats to their children). Jail and prison are also dangerous for women, as abuse by correctional staff, neglect of health, and overuse of medications are common (see Human Rights Watch Women's Rights Project 1996; Amnesty International 1999, 2001; Moe and Ferraro 2002). The women in PCAD described many problems with the care and level of safety they experienced, but some also commented on the jail as a break from the demands of mothering, street life, and male violence. Angel, for example, was passionate about literature and was using her time to read and write. She said she had read more than fifty books since she had been in jail and was writing a novel called *My Sister's Wedding* in longhand. She also had plans for another book designed to help women find jobs after getting out of prison. She planned to write at least three books if she received the longest prison term possible. With six young children at home and her oldest son in prison, she viewed her time in jail as a "vacation":

Yeah, this has really been like a vacation for me in a way, 'cause I get a chance to, when I was at home with the kids, I never got a chance to sit down and read books. It's impossible to find the time to write when you have to work and you have to get the kids off to school or you have to do all of the things. I want to try to take this time and use it the best that I can to prepare myself for a career as a writer. If I'm paid to write and that's all I have to do, well then I can do that at home when my kids are at school. I don't have to get up and go to work.

Angel had a positive outlook on life. "You have to try to find the goodness in all the bad things that happen to us in life, and there's plenty if you look." She placed all six of her little girls with her mother in Florida when she was arrested. Although she was in a good relationship with a man at the time of her arrest, "he wasn't able to handle all six of the girls 'cause they're all girls." She discussed working with this man as photographers in a restaurant, but she had no expectation that he would share in parenting activities. The children's biological fathers were abusive or had abandoned them, and thus Angel took full responsibility for their care and delayed her personal goals. This was true for all women, none of whom had male partners on whom they could rely for child care.

Other women viewed the minimal health and nutrition services as a respite from street life. Boo was pregnant with her fourth child, and she felt the care she received in jail was positive. She had been incarcerated so many times that she knew the guards like family:

To me this is my home away from home 'cuz I don't have nobody on the outside. So it's kind of hard for me but then at the same time I like it in here 'cuz I get that special attention that I crave. . . . I know all of the COs [correctional officers] here. They're like my uncles and aunts in my way, you know what I'm saying. They're real good people to me. I like them. . . . I get taken care of in here very well. They give us three pregnancy bags a day which contain two cartons of milk, two orange juices, and two fruits, and you get three pills three times a day during breakfast, lunch, and dinner, so you have your little snack bag.

Although most women complained about the food and health care available in the jail, for Boo, who lived on the streets, the jail provided a relatively healthy environment for her pregnancy.

Other women viewed their incarceration as a way to get away from an abusive husband. Lonna, quoted earlier, who was jailed for violating her probation for welfare fraud, explained that her jail time allowed her to break from her husband and that she would not return home. Her children were having problems while she was in jail, but she felt a divorce would benefit them eventually:

They don't have a mom or a dad. My mother-in-law asked my son, "Why are you acting this way?" He says, "Why do I have to come home? I don't have a family." I hear in the background my older daughter says, "It's true. My mom's in jail and my dad's out partying." Damn. Anyway, I think it's a good thing that I came to jail. . . . I'm not going back home. I'm getting a divorce when I leave here. I'm just going to take the kids and leave. That's my plan when I leave here. . . . It's a good thing I'm here I guess. Not for the kids but it will be better in the long run.

Lonna had tried for fifteen years to make her marriage work, keep her family together, and have their bills paid. She assumed all the responsibility for her three children while her husband used her paycheck to buy drugs and liquor. She was attending classes in jail, which she believed were helping her to break free of that relationship and to help her children.

Similar to the women in Bosworth's (1999) study of women prisoners in England, femininity established the burdens and constraints women at PCAD faced as well as provided a grounds for resistance. The socially structured mandate for maternal responsibility for children's well-being and the failure of fathers and other men to provide support for parenting create a situation in which low-income women must struggle for money while providing care and denying their own dreams and interests. The state's intervention creates additional burdens through incarceration and terms of probation that further complicate the already overwhelming demands on mothers. Jobs and wages are lost due to violent husbands, women are arrested for crimes of economic survival, and criminal records make it more difficult to find good jobs. At the same time, the care of children provided a grounds on which women could focus on future goals and improvements: a career in writing, a healthy pregnancy, and divorcing an abusive husband. While some women could embrace the role of mothering as an opportunity for personal growth and social acceptance, for others, that opportunity had already been lost through state intervention in custody.

ADDICTIONS AND CHILD PROTECTIVE SERVICES

The majority (80 percent) of women interviewed were addicted to illegal drugs or alcohol. Crack cocaine was the most common drug, followed by heroin and crystal methamphetamine. Both crack and crystal were cheap and easily available in southern Arizona. A small "rock" of crack could be purchased for five dollars on the street. Heroin from Mexico was also quite easy to obtain. Thirteen women (43 percent) indicated that they were addicted to crack, with several of these women also using heroin, powder cocaine, or alcohol. Three women were alcoholics, and two women used crystal methamphetamine. Three of the six women who were not addicted to any substance were in jail because of their sale of crack or crystal. As Chesney-Lind (1997) and others have noted, the war on drugs clearly translates into a war on women.

Many women had lost custody of their children because of their addictions. Twelve women had children removed by CPS because of their alcohol or drug use. Ten had their parental rights severed and could not see their children until they turned eighteen, and two were still

actively trying to have their children returned. The other twelve women with addictions had placed their children with relatives prior to incarceration. Several women indicated that the final severance decision was what pushed them into resumption of drug or alcohol use or into more serious addiction.

Theresa, a thirty-nine-year-old white woman with four children younger than sixteen and a twenty-two-year-old son, had much difficulty during her interview because of her extreme sadness and pain over the loss of her children. She showed no expression and spoke in a monotone. She was not pressed to elaborate on answers as it was obviously hard for her to remember and talk about her life. She was in jail because of a second driving under the influence charge that occurred when she resumed drinking after being sober for three and a half years. Her parental rights were severed because she reunited, briefly, with her abusive husband:

I quit for three years, three and a half years, since 1995, and then when they said severance and adoption, I slightly fell off the wagon. [Question: You actually quit for three years and they still?] Yeah, they just brought up so many different things. They said we caused problems for the kids because of our arguments and our fighting and this and that. They bring up so many different things. [Question: Don't they have a plan, though, that you follow? And if you follow the plan then you get your kids back?] Yeah, I followed the plan. But then I got back with their dad, and he messed up and so then CPS said because it was my choice to get back with him that it ruined both of our chances of getting the kids back. And I told them, "I don't see how." That's when I lost it. The hardest I've ever drank in my life was last year. They were doing random drug testing and I was dropping clean. And I was doing all of their parenting classes and all their going to their psychiatrists plus going to my own psychiatrist plus doing my groups and doing AAs [Alcoholics Anonymous] and still, it didn't matter.

According to Theresa, her husband had received a two-and-a-half-year prison sentence for "trying to kill us." As she explained, "He beat me up severely so where one eye, this whole side of my face was just black and blue and swollen shut for like a whole month, and he cut me, stabbed me, three times." Although her husband was out of the situation because of his incarceration, CPS severed Theresa's rights and placed her children up for adoption. As Theresa phrased it, "Until they're eighteen

they've been sentenced to adoption." Her plans focused on the day of their reunification: "What are my plans? To stay sober. I want to finish my education, get on with my life. Hopefully it will go a little faster so I can see my kids when they're eighteen."

Theresa's case illustrates the importance of children to women's recovery from alcohol and drugs and the despair that emerges when rights are severed. Her case also reflects the ways in which CPS agencies fail to respond appropriately to domestic violence by removing children from women who are abused. The district court ruling in *Nicholson v. Scopetta* found that New York City's Administration for Children's Services had demonstrated "benign indifference, bureaucratic inefficiency and outmoded institutional biases" in removing children from the custody of women who had been beaten by their abusers (Friedlin 2002).

Marie's situation was similar, only she turned to crack and powder cocaine, heroin, and methadone when her children were removed. Marie, a twenty-seven-year-old white woman with two young children (three and five years old), had also lost her children due to her husband's conduct. They were removed after he had gotten high on drugs and pushed them in a stroller onto a busy highway. Marie was home sick when the incident occurred. Because her family was living in a motel room at the time, the environment was considered unfit and CPS removed the children. Marie started using drugs after this but stopped, filed for divorce, rented an apartment, and followed all of the demands of CPS when she thought she had a chance of reunification:

Everything was goin' good. Got an apartment of my own to get my kids back up on the north side of town where it's really expensive so they could live in a good place. The psychological evaluator was there and he suspected that I was doing this just to fool CPS, but he never voiced his suspicions to me. He voiced them to my CPS worker and he just changed it. The night before we went to court, he changed the whole plan from givin' them back to me to severance and adoption. I called up the psychological evaluator and asked, "How come you didn't ask me about this?" He said, "I told them there wasn't any furniture." I said, "Well, that's because I had just moved in. I have lots of furniture now." "Oh, well, I didn't think about that." And then he said, "Well, you don't have no food in your house." I said, "That's because I live by myself and I work in a restaurant and I eat there all the time. I don't need food." "Well, yeah, I guess I didn't think about that." And I said, "Well, why didn't you ask me

before you told my CPS worker?" It was too late then because they were changin' things. They told me again that they were going to take my kids away, so I started doin' drugs again. And then, prostitution came in.

Marie had been sentenced to six months in jail for prostitution, plus a \$1,000 fine and two years on supervised probation. Although her children were in an adoptive home and CPS was moving to sever her rights, she believed she still had a chance of getting them back, and that was her motivation for staying clean:

I know I'll get them back. They have no reason to keep them from me. I know I'll get them back. Plus, I pray. I know I will have them. [Question: Do you see any barriers to getting your kids back? Staying out of the drugs?] No. I think getting them back is a real strong drive for me to stay out of drugs. It gives me something to concentrate on. I know if I touch those drugs, the kids are gone. I'll never even have a fighting chance. So, I know I can't. The only barriers I see is just the last court date. I didn't go because I was high. I knew they were takin' them and I couldn't bear to hear a severance and adoption as they planned, so I just didn't go. That didn't help. I just hope it ain't the same judge.

Gillian, a thirty-six-year-old white woman, also began using crack after CPS severed her rights to her daughter. Her only child was removed from the home after reporting to her grandmother that her father had sexually molested her. Gillian and her daughter moved in with Gillian's mother after her husband assaulted and threatened to kill her. Her daughter was nine at the time and intellectually gifted, while Gillian had a learning disability and had not graduated from high school. Although she was following all the guidelines set by CPS, her rights were severed and she felt as if she had lost everything:

She [her daughter] had been sexually molested when she was younger than that. I didn't know it. I had been going through the courts doing everything they asked me to, and they lied to me. [Question: Child protective services?] Yeah, CPS lied to me. [Question: What did they lie to you about?] Saying that if I did everything they told me to I would get her back. They lied to her too saying that she was going to be moving back in with me. They lied to both of us. We went to court. I didn't have a GED [general equivalency diploma]. I have dyslexia. I have a learning disability. They said her intelligence would be wasted if they gave her back to

me because I couldn't afford her education and I couldn't teach her how to read as she got older. I have dyslexia and I see words backward sometimes if I'm not careful. They used her IQ. It was 121 at the age of seven. She could not read. They figured her being with me would be a waste of time because I couldn't give her the education she needed. I didn't know that education was more important than love. I guess it is in their eyes. . . . I was like, "They've been lying to me all this time." Finally we went to court and they tried to say I had a drug and alcohol problem. I didn't even do drugs back then. I smoked pot, but since I've been in Tucson, I haven't smoked no weed. I did drink. They said I had a drug problem, and I don't even know where they got that. I wasn't even doing drugs. I did start drugs after I lost her. About two to three months later, I did it. I was like, "Hell, they said I did it." I didn't have nothing to lose then. I had already lost her, so that's when I started doing drugs.

Certainly, there is a possibility that women misunderstood or misrepresented the severance process that resulted in the loss of their children. The important point that can be drawn from these narratives, however, is that women's use of drugs or alcohol was often related in their own minds to the loss of their children. With "nothing to lose," and easy access to crack and alcohol, these women were drawn into usage that eventually resulted in their incarceration.

For some addicted women, use of crack cocaine preceded state intervention; however, they felt it was impossible to stop using. The threat of losing their children, or even damaging their children, could not overcome their dependence on crack. All the women indicated their sincere desire to stop using crack and their belief that crack had "taken everything." Many were awaiting limited bed space in residential treatment centers. All were attending Narcotics Anonymous and AA groups, and most felt that God was helping them get off drugs by sending them to jail. Women addicted to crack indicated that it was not possible for them to stop using while they lived in the neighborhoods where crack was easily available and all their acquaintances were using.

Two women had used crack while they were pregnant and felt enormous grief and guilt about endangering their babies. Peaches, a thirty-two-year-old African American woman, gave birth to a stillborn baby because of her use of crack. In jail for prostitution, she described a horrendous history of childhood sexual abuse. Peaches was the youngest of thirteen children, and her mother forced her to have sex with all of her

siblings, as well as herself and her boyfriend. Her father took her away from this situation when she was six, but he also sexually abused her. She had a seventeen-year-old daughter and fourteen-, thirteen-, twelve-, and nine-year-old sons and had lost custody of all of them. Of all of the traumas she had experienced, however, she described the death of her baby as the worst:

I have six kids. I have four boys, and I have a daughter, and then I have a little boy who passed away. [Question: Oh, I'm sorry. When did that happen?] In 1990. He was a crack baby. He was stillborn. I carried him for the whole nine months. I felt his last kick. That was the hardest thing I had to go through in my life. I don't think all the molestation and everything that I've been through has been worse than having a stillborn. I carried that baby for nine months. I don't think none of that that I've been through can top that day. I think that's the biggest problem that I'm having. I can't forgive myself for that. That's my biggest problem. [Question: You think the drugs did it?] Oh yes. There's no doubt in my mind that the drugs did it. I was doin' drugs as I was in labor. [Question: Did the doctors actually say that it was because of the drugs?] No, they didn't exactly say it was because of the drugs, but deep down inside, I know that was what it was. They wanted to go before a judge and get court orders to do autopsies. At that time, they had just passed a law that if a woman has a baby that's dead or something's wrong with the baby . . . like, my baby was dead so they could have charged me for murder on that child because I had been smokin' drugs. I didn't want that to happen so I did not give them permission to do an autopsy on my baby. The judge wouldn't give them permission because at the time that I was going for prenatal care, they were tellin' me that the baby was fine.

Peaches could not forgive herself and had little hope of ever seeing her children again. She had decided, however, that she was at the end of the line with crack and had to give it up or die:

When I leave, I'm leaving here with nothing. No probation. When I do go to rehab, it's because I want to. . . . Matter of fact, I think it is the only option for me because there's only two lives. If we choose drugs, that's death. That's the way I feel. If you choose to not do drugs, that's life. I don't want to die doin' drugs. I don't want to die and have to be put in a cardboard box and buried in a cemetery because nobody claims me. That's the only option for me.

Tina's baby did not die, and she had not yet lost custody of her two children who were living with her parents. A twenty-seven-year-old Latina, Tina had been taken directly to jail after giving birth. She was arrested for violating probation, which she had received for drug trafficking and racketeering. During her interview, she lifted her T-shirt to show forty to fifty small, round burn scars on her stomach that had been caused by hiding her hot crack pipe in the waistband of her maternity pants. Tina had also been molested as a child, raped at age twelve, and stabbed and beaten by a group of girls who attacked her for her jewelry. At the time of the interview, her baby was a month old and Tina had been in jail for three weeks and four days. She had stopped using crack for six months during her pregnancy and was living far from town with a friend. There was no public transportation available, and she did not have a car, so her probation officer issued a violation for missed appointments. Tina knew she was facing IPS anyway, so she decided to attend a party with her friend and succumbed to the offer of crack. She cried heavily as she explained:

I did it; and I was laughing; and I remember hitting it and then feeling her move inside of me, like right after I hit the crack; and I still didn't stop; and then the fourth time I hit it, my plug broke and then my water broke. They wanted to go get more drugs and I was there by myself, and I called my dad and I told him. I was scared, you know? What if she died? They could at least treat her for the cocaine. They didn't violate me for probation for it or anything. I figured I couldn't stop; I mean, I stopped because I was away from it. But I couldn't stop when I was around it. So that's why I needed the help. And after seeing her go through the IV, you know, they were testing her, making sure. . . . It threw her complete blood count off. It was real bad; it was real off. But she's healthy now, but to see her hooked up to all them things and bruised up from them. She's just a little baby. It's awful, just seeing her. . . . She's a little angel from God. For me to just imagine one hit . . . what it does to me. Imagine what it did to her little brain. . . . Looking at her little eyes, her little smiles, thinking every little thing, "Is that because I did crack?" You know? "Is that because I had smoked when she had first developed?" I was scared, 'cuz I didn't know I was pregnant. But every little thing that I saw, I was just paranoid. Excuse me [crying hard], I'm like, just like for me to hurt her, just horrible. . . . CPS got involved; I mean, I don't blame them, the hospital called them, and you know, they treated me like a monster, and I felt like a monster; I *knew* I was a monster. But the remorse I feel, the hurt. . . . My dad

gets mad when I tell him I love my kids and I'm gonna change. He says, "Don't tell me you love them; every time you tell me, that makes me sick after what you did."

Tina and Peaches expressed a desire to stop using crack and bore tremendous sadness and guilt about the harm caused to their babies and their families. They shared the hegemonic public view of crack mothers as evil baby killers who deserve nothing but contempt, and they felt self-contempt as "monsters." They desperately wanted help and had long histories of abuse in addition to their addictions. The intensive assistance required to help them recover from their addictions and return to a mothering role was not available to them. Instead, the only motivation for recovery, their children, had been taken away, and they have nothing to look forward to except guilt and regret. These data suggest that decisions about child custody play a central role in women's resistance to the psychological anesthesia offered by drugs and alcohol. Balancing the need to protect children and promote women's health and well-being requires programs that are attuned to both mothers and children and flexible in their ability to provide support to both.

MOTHERING AND IDENTITY FROM INSIDE

The majority of women in jail had identities that reflected some of the social approbation that their incarceration signified. Like Tina and Patrice, cited earlier, the linkage of their drug usage with harm to their children contributed to self-images as "monsters," and they were unable to forgive themselves. Women who had prostituted for drugs or lost custody because of drugs also had negative judgments about those aspects of their identities. Other women resisted stigmatization by contextualizing their offenses within the realities of economic marginalization and violent victimization. As Alicia pointed out, "We're not all bad people."

In struggling to develop positive identities, mothering was critical in sustaining perceptions of value and goodness. In the abstract, motherhood is a highly valued status, and women viewed the facts of their motherhood as a potential source of social acceptance. At a deeper level, however, many women indicated that their links to their children

were central to their selfhood. Children were extensions of their own identities, separate yet constitutive of women's subjectivity. In one case in which it was physically possible, a woman returned to one of us with pictures of her children after her own interview ended. Other women indicated regret that they did not have photographs available to show us and spoke of how beautiful and cute their children were.

India, a thirty-one-year-old American Indian woman with six children, illustrated the importance of children to women's identities most graphically. She had tattoos for each child's name on various parts of her body. A heart with flowers around a blank space on her right breast was reserved for her youngest child whose name she had not yet had tattooed. She had lost her children to CPS at one point but regained custody after following their requirements. Her children were with their father's sister, and she planned to reunite with them after completing her sentence.

Even women whose rights had been terminated and who were prohibited from interacting with their children believed that they would be reunited one day. Julianna had lost custody of her four children but believed that some day they would be together again:

I believe in my heart of hearts, once you birth a child, they can take your child from you for so long, but that child will come back. Listen to a lot of these talk shows on how families are starting to reunite. Just look at the awesome power of God to bring families back together that haven't been together for fourteen, twenty, thirty years. I have a dream that one day my two children that is within the state, I will see them. We will reunite and be together. With my other children in Nebraska, I have no doubt that I will see them. They'll be family. God will show me the way for us to reunite and be together again. That's my strong belief.

The likelihood of Julianna reuniting her family was small, but focusing on this dream gave her the hope and strength to go on living. Like many jailed women, she believed that God was guiding her life and would ultimately return her children to her. She described what she believed to be direct communication with God:

That's when He spoke to me, sternly this time. "I'm gonna pick you up, and I will turn your life around, and I will make you want success and

great things. Most of all, I will make you a great woman of God and you will be a great woman. I'm gonna bring you back to your children again." That, right there, is enough for me to hold on, to walk through the storm and the rain, and move on with my life.

Linda, who lost custody of three children because of her crack and heroin addictions, also believed that God would return her children to her:

I ask God to give me my life back, give me my children back. And so now, this is a start. I'm okay with where I'm at because I know when I leave here it won't be long before I can reunite with my children. Not right away, but eventually it's goin' to come together. I know God is gonna give them back to me. I know I'm goin' to see them real soon. Without them, I'm nothin'. I just thank God.

Even women whose children had died carried their memories and the grief over their loss as a central aspect of their identities. Buckwheat's son had been killed in a drive-by shooting five years before we met her. She said that she went into a "blackout" for eight days and was finally awakened by the boy's father. He told her, "You didn't do nothin'. I had to go up to you and put the mirror to your face to see if you were alive." She described how a recent Valentine's Day visit at the jail had confirmed her son's eternal life and continued relationship to her:

This past Valentine's, they had these Christian women come out here for a Valentine's thing in here. They gave out these little heart-shaped doilies and they had a little prayer on them, and they said to all of us, "These are special gifts that we're goin' to give you and hopefully the right one is goin' to reach you." Well, it surprised me about the one that they gave me because it said, "I gave my son to the Lord and for. . . ." I can't think of all of it but that he would live forever. I said, "Oh my God." And He told me to let it go. To let him go.

The continued importance of children to women's identities, despite severance or even death, was clear in all the women's narratives. This connection helped women to survive and look forward to the future with hope. It also made incarceration and separation from children more painful and worrisome due to the impact on children and the difficulties of mothering from inside the detention facility.

CONCLUSION

Mothering in an environment of scarce resources places women in a web of demands and constraints that may lead to incarceration. Selling drugs or cashing bad checks to meet bills and turning to drugs and alcohol as a way of coping with the psychological pain of childhood sexual abuse or the ongoing pain of domestic violence are the primary pathways that lead women to jail (Daly 1994; Henriques and Manatu 2001; Katz 2000). Incarceration then creates greater burdens for maintaining positive relationships with children and for managing the demands of probation once released. Women interviewed at the PCAD had survived horrendous abuse and poverty yet maintained hope for a positive future and eventual reunion with their children.

Mothering simultaneously reproduces the unequal sexual division of labor and provides possibilities for resistance to marginalization and despair. The assumption that women will be primary caretakers and will provide resources and love for children when men do not demands that women obtain money and dispense care without much assistance. The possibility that women will become involved in crime as a result of trying to meet these demands is exacerbated by race and class hierarchies that restrict access to incomes adequate to support children.

The chaotic and demanding community contexts that lead women to view jail as a "vacation" suggest that there are complex problems facing low-income mothers that cannot be resolved either through programs for the children of incarcerated mothers or through revisions in sentencing policies. Reversing the trend of incarceration of minor drug and property offenders would ameliorate some of the harsh circumstances for both mothers and children created by incarceration. However, the violence, poverty, drug abuse, and mental health problems that women face outside of jail can only be addressed through systematic attention to the sources of these problems for women. Recent social policy trends exacerbate the obstacles facing many women. Exclusion of convicted drug offenders from social welfare programs, zero-tolerance housing policies that evict battered women from public housing, punitive and restrictive Temporary Assistant to Needy Families guidelines, and programs that encourage women to marry as a solution to poverty make it more difficult for low-income single mothers to survive in the United States than at any time since the Great Depression. The narratives of jailed women reflect this difficulty and the failure of social policies to remedy the cumulative effects of violent victimization, poverty, racism,

drug addictions, and mental health problems on women's abilities to mother their children.

While mothering complicates women's abilities to negotiate marginalized existence, it also provides a resource for hope and positive identity. The dominant ideology of motherhood is reflected in women's accounts of their inadequacies and failures but also in their insistence on fighting against addictions, male violence, and poverty. Although the desire to be a "good mother," and the dimensions of that construct, may be a vector of the social control of women, it is simultaneously a grounds from which women challenge structural and individual sources of oppression.

REFERENCES

- Administration for Children and Families. 2002. *Information memorandum on Promoting Safe and Stable Families Amendments of 2001*. Available from <http://www.acf.hhs.gov/programs/cb/laws/im/im0201.pdf>.
- Allen, Hilary. 1987. Rendering them harmless: The professional portrayal of women charged with serious violent crimes. In *Gender, crime and justice*, edited by Pat Carlen and Anne Worrall, 81-94. Philadelphia: Open University Press.
- Amnesty International. 1999. "Not part of my sentence": *Violations of the human rights of women in custody*. Available from <http://web.amnesty.org>.
- . 2001. *New reports of children and women abused in correctional institutions. Findings from Amnesty International research trip*. Available from <http://webamnesty.org>.
- Arnold, Regina. 1990. Processes of victimization and criminalization of black women. *Social Justice* 17:153-66.
- Baunach, Phyllis Jo. 1985. *Mothers in prison*. New Brunswick, NJ: Transaction Publishing.
- Beck, Allen J., and Paige M. Harrison. 2001. *Prisoners in 2000*. Washington, DC: U.S. Department of Justice.
- Belknap, Joanne. 2001. *The invisible woman: Gender, crime, and justice*. 2d ed. Belmont, CA: Wadsworth.
- Bloom, Barbara. 1992. Incarcerated mothers and their children: Maintaining family ties. In *Female offenders: Meeting the needs of a neglected population*. Laurel, MD: American Correctional Association.
- Bloom, Barbara, Meda Chesney-Lind, and Barbara Owen. 1994. *Women in California prisons: Hidden victims of the war on drugs*. San Francisco: Center on Juvenile and Criminal Justice.
- Bloom, Barbara, and David Steinhart. 1993. *Why punish the children? A reappraisal of the children of incarcerated mothers in America*. San Francisco: National Council on Crime and Delinquency.

- Bosworth, Mary. 1999. *Engendering resistance: Agency and power in women's prisons*. Aldershot, UK: Ashgate.
- Boudin, Kathy. 1998. Lessons from a mother's program in prison: A psychosocial approach supports women and their children. In *Breaking the rules: Women in prison and feminist therapy*, edited by Judy Harden and Marcia Hill, 103-125. New York: Haworth.
- Caddle, Diane. 1998. *Age limits for babies in prison: Some lessons from abroad*. London: Home Office Research, Development and Statistics Directorate.
- Caiazza, Amy B. 2000. *The status of women in Arizona*. Washington, DC: Institute for Women's Policy Research.
- Chesney-Lind, Meda. 1997. *The female offender: Girls, women, and crime*. Thousand Oaks, CA: Sage.
- Chesney-Lind, Meda, Mary Kay Harris, and Gabrielle deGroot. 1998. Female offenders. *Corrections Today* 60 (7): 66-144.
- Daly, Kathleen. 1994. *Gender, crime and punishment*. New Haven, CT: Yale University Press.
- DeVault, Marjorie L. 1999. *Liberating method: Feminism and social research*. Philadelphia: Temple University Press.
- Dobash, Russell P., R. Emerson Dobash, and Sue Gutteridge. 1986. *The imprisonment of women*. London: Basil Blackwell.
- Elliott, Terri. 1994. Making strange what had appeared familiar. *Monist* 77:424-33.
- Enos, Sandra. 2001. *Mothering from the inside: Parenting in a women's prison*. New York: State University of New York Press.
- Fineman, Martha A. 1995. Images of mothers in poverty discourse. In *Mothers in law: Feminist theory and the legal regulation of motherhood*, edited by Martha A. Fineman and Isabel Karpin, 205-23. New York: Columbia University Press.
- Friedlin, Jennifer. 2002. Judge exposes agency harm to battered mothers, kids. *Women's E News*, April 28.
- Gilbert, Evelyn. 1999. Crime, sex, and justice: African American women in U.S. prisons. In *Harsh punishment: International experiences of women's imprisonment*, edited by Sandy Cook and Suzanne Davies, 230-49. Boston: Northeastern University Press.
- Gilfus, Mary E. 1992. From victims to survivors to offenders: Women's routes of entry and immersion into street crime. *Women and Criminal Justice* 4:63-90.
- Glaser, Barney G., and Anselm L. Strauss. 1967. *The discovery of grounded theory: Strategies for qualitative research*. Chicago: Aldine.
- Glick, Ruth M., and Virginia V. Neto. 1977. *National study of women's correctional programs*. Washington, DC: U.S. Department of Justice.
- Greenfield, Lawrence A., and Tracy L. Snell. 1999. *Bureau of Justice Statistics special report: Women offenders* (NCJ 175688). Washington, DC: U.S. Department of Justice.
- Harrison, Paige M., and Allen J. Beck. 2002. *Bureau of Justice Statistics bulletin: Prisoners in 2001* (NCJ 195189). Washington, DC: U.S. Department of Justice.
- Hartsock, Nancy. 1987. The feminist standpoint: Developing a ground for a specifically feminist historical materialism. In *Feminism and methodology*, edited by Sandra Harding, 157-76. Milton Keynes, UK: Open University Press.

- Henriques, Zelma W. 1982. *Imprisoned mothers and their children*. Lanham, MD: University Press of America.
- Henriques, Zelma W., and Rupert N. Manatu. 2001. Living on the outside: African American women before, during, and after imprisonment. *The Prison Journal* 81 (1): 6-19.
- Hill Collins, Patricia. 1989. The social construction of black feminist thought. *Signs* 14:745-73.
- . 2000. *Black feminist thought: Knowledge, consciousness, and the politics of empowerment*. New York: Routledge.
- Human Rights Watch Women's Rights Project. 1996. *All too familiar: Sexual abuse of women in U.S. state prisons*. New York: Human Rights Watch.
- Humphries, Drew. 1999. *Crack mothers*. Columbus: Ohio State University Press.
- Ikemoto, L. C. 1997. Furthering the inquiry: Race, class, and culture in the forced medical treatment of pregnant women. In *Critical race feminism: A reader*, edited by Adrien K. Wing, 136-143. New York: New York University Press.
- Immarigeon, Russ, and Meda Chesney-Lind. 1992. *Women's prisons: Overcrowded and overused*. San Francisco: National Council on Crime and Delinquency.
- Karush, Sarah. 2002. Kremlin pardons imprisoned mothers. *The Globe and Mail*, March 20, p. A16.
- Katz, Rebecca S. 2000. Explaining girls' and women's crime and desistance in the context of their victimization experiences: A developmental test of revised strain. *Violence Against Women* 6 (6): 633-60.
- Kline, Marlee. 1995. Complicating the ideology of motherhood: Child welfare law and First Nation women. In *Mothers in law: Feminist theory and the legal regulation of motherhood*, edited by Martha A. Fineman and Isabel Karpin, 118-41. New York: Columbia University Press.
- Kvale, Steiner. 1996. *InterViews: An introduction to qualitative research interviewing*. Thousand Oaks, CA: Sage.
- Lofland, John, and Lynn H. Lofland. 1995. *Analyzing social settings: A guide to qualitative observation and analysis*. 3rd ed. Belmont, CA: Wadsworth.
- McGowan, Brenda G., and Karen L. Blumenthal. 1978. *Why punish the children?* Hackensack, NJ: National Council on Crime and Delinquency.
- Miller, Jody. 1998. Up it up: Gender and the accomplishment of street robbery. *Criminology* 36:37-65.
- Moe, Angela M., and Kathleen J. Ferraro. 2002. Malign neglect or benign respect: Women's health care in a carceral setting. Paper presented at the annual meetings of the Academy of Criminal Justice Sciences, March 5-9, Anaheim, CA.
- Molloy, Maureen. 1992. Citizenship, property, and bodies: Discourses on gender and the inter-war labor government in New Zealand. *Gender and History* 4:293-304.
- Morash, Merry. 1998. *Women offenders: Programming needs and promising approaches*. Washington, DC: U.S. Department of Justice.
- Mumola, Cristopher J. 2000. *Incarcerated parents and their children*. Bureau of Justice Statistics special report. Washington, DC: U.S. Department of Justice.
- Nagel, Irene H., and John Hagan. 1983. Gender and crime: Offense patterns and criminal court sanctions. In *Crime and justice*, vol. 4, edited by Michael Tonry and Norval Morris, 91-144. Chicago: University of Chicago Press.

- Narayan, Uma. 1988. Working together across difference: Some considerations on emotions and political practice. *Hypatia* 3 (2): 31-47.
- National Institute of Corrections. 2002. *Services for families of prison inmates*. Longmont, CO: National Institute of Corrections Information Center.
- Orbuch, Terri L. 1997. People's accounts count: The sociology of accounts. *Annual Review of Sociology* 23:455-78.
- Pollak, Otto. 1950. *The criminality of women*. Westport, CT: Greenwood.
- Richie, Beth E. 1996. *Compelled to crime: The gender entrapment of battered black women*. New York: Routledge.
- . 2001. Challenges incarcerated women face as they return to their communities: Findings from life history interviews. *Crime & Delinquency* 47:368-89.
- Roberts, Dorothy E. 1995. Racism and patriarchy in the meaning of motherhood. In *Mothers in law: Feminist theory and the legal regulation of motherhood*, edited by Martha A. Fineman and Isabel Karpin, 224-49. New York: Columbia University Press.
- Ross, Luana. 1998. *Inventing the savage*. Austin: University of Texas Press.
- Sandoval, Chela. 2000. *Methodology of the oppressed*. Minneapolis: University of Minnesota Press.
- Schafer, N. E., and A. B. Dellinger. 1999. Jailed parents: An assessment. *Women and Criminal Justice* 10 (4): 73-118.
- Smart, Carol. 1995. Criminological theory: Its ideology and implications concerning women. In *Law, crime and sexuality: Essays in feminism*, edited by Carol Smart, 16-31. London: Sage.
- . 1998. The woman of legal discourse. In *Criminology at the crossroads: Feminist readings in crime and justice*, edited by Kathleen Daly and Lisa Maher, 21-36. New York: Oxford University Press.
- Smith, Dorothy. 1987. *The everyday world as problematic: A feminist sociology*. Toronto, Canada: University of Toronto Press.
- Snell, Tracy L. 1994. *Women in prison: Survey of state prison inmates, 1991*. Washington, DC: U.S. Department of Justice.
- Sommers, Ira B., Deborah Baskin, and Jeffrey Fagan. 2000. *Workin' hard for the money: The social and economic lives of women drug sellers*. Huntington, NY: Nova Science Publishers.
- Stanton, Ann M. 1980. *When mothers go to jail*. Lexington, MA: D. C. Heath.
- Stephan, J. J. 2001. *Census of jails 1999*. Washington, DC: U.S. Department of Justice.
- U.S. General Accounting Office. 1999. *Women in prison: Issues and challenges confronting U.S. correctional systems*. Washington, DC: U.S. General Accounting Office.
- Watterson, Kathryn. 1996. *Women in prison: Inside the concrete womb*. Rev. ed. Boston: Northeastern University Press.
- Young, Vernetta D. 1986. Gender expectations and their impact on black female offenders and victims. *Justice Quarterly* 3:305-27.
- Zalba, Serapio R. 1964. *Women prisoners and their families*. Albany, NY: Delmar.